DIVISION BENCH ITEM NO.101-115 & 161

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 23rd February, 2024

Attendance-Cum-Order Sheet of the Hearing.

ITEM NO.101 - CA NO.120/2019 & IA NO.406/2023 IN CP (IB) No.330/ALD/2018

NAME OF THE COMPANY	**ICICI BANK LTD V/S JAIPRAKASH ASSOCIATES LTD**
UNDER SECTION	**7 IBC**

ITEM NO.102- CP (IB) No.371/ALD/2019

NAME OF THE COMPANY	**RAJ KUMAR SHARMA V/S JAIPRAKASH ASSOCIATES LTD**
UNDER SECTION	**7 IBC**

ITEM NO.103- CP (IB) No.372/ALD/2019

NAME OF THE COMPANY	**ARUN SHARMA V/S JAIPRAKASH ASSOCIATES LTD**
UNDER SECTION	**7 IBC**

ITEM NO.104- CP (IB) No.108/ALD/2022

NAME OF THE COMPANY	**STATE BANK OF INDIA V/S JAIPRAKASH ASSOCIATES LTD.**
UNDER SECTION	**7 IBC**

ITEM NO.105- CP (IB) No.23/ALD/2019

NAME OF THE COMPANY	**JAYCON INFRASTRUCTURE LTD V/S M/S JAIPRAKASH ASSOCIATES LTD**
UNDER SECTION	**9 IBC**

-Sd- ***-Sd-***

ITEM NO.106- CP (IB) No.216/ALD/2019

NAME OF THE COMPANY	**PHOSPHATE INDIA PVT LTD V/S JAIPRAKASH ASSOCIATES LTD**
UNDER SECTION	**9 IBC**

ITEM NO.107- CP (IB) No.48/ALD/2021

NAME OF THE COMPANY	**KANODIA INFRATECH LTD V/S JAIPRAKASH ASSOCIATES LTD**
UNDER SECTION	**9 IBC**

ITEM NO.108- CP (IB) No.62/ALD/2022

NAME OF THE COMPANY	**VOLTAS LIMITED V/S JAIPRAKASH ASSOCIATES LIMITED**
UNDER SECTION	**9 IBC**

ITEM NO.109- CP (IB) No.95/ALD/2022

NAME OF THE COMPANY	**R.K. ROAD LINES V/S JAIPRAKASH ASSOCIATES LIMITED**
UNDER SECTION	**9 IBC**

ITEM NO.110- CP (IB) No.96/ALD/2022

NAME OF THE COMPANY	**DIAMOND ROAD LINES V/S JAIPRAKASH ASSOCIATES LIMITED**
UNDER SECTION	**9 IBC**

ITEM NO.111- CP (IB) No.97/ALD/2022

NAME OF THE COMPANY	**ANAND CARRYING CORPORATION V/S JAIPRAKASH ASSOCIATES LIMITED**
UNDER SECTION	**9 IBC**

ITEM NO.112- CP (IB) No.98/ALD/2022

NAME OF THE COMPANY	**MAHAVIR ROADLINES V/S JAIPRAKASH ASSOCIATES LIMITED**
UNDER SECTION	**9 IBC**

-Sd- ***-Sd-***

ITEM NO.113- CP (IB) No.99/ALD/2022

NAME OF THE COMPANY	**LUCKY FREIGHT CARRIERS V/S JAIPRAKASH ASSOCIATES LIMITED**
UNDER SECTION	**9 IBC**

ITEM NO.114- CP (IB) No.23/ALD/2023

NAME OF THE COMPANY	**SHYAM COAL COMPOANY V/S JAIPRAKASH ASSOCIATES LTD**
UNDER SECTION	**9 IBC**

ITEM NO.115- CP (IB) No.24/ALD/2023

NAME OF THE COMPANY	**AWADH ENTERPRISES V/S JAIPRAKASH ASSOCIATES LTD**
UNDER SECTION	**9 IBC**

ITEM NO.161 - CA NO.213/2018 IN CP (CAA) No.19/ALD/2018, CA (CAA) No.174/ALD/2017 (Second Motion)

NAME OF THE COMPANY	**JAIPRAKASH ASSOCIATES LTD WITH JAYPEE INFRASTRUCTURE DEVELOPMENT LTD**
UNDER SECTION	**230/232 OF COMPANIES ACT, 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. Amit Saxena, Sr. Adv. assisted by Sh. Madhav Kanoria, Sh. Rahul Agarwal, Ms. Srideepa Bhattacharya, Ms. Aishwarya Gupta & Ms. Dakshita Chopra, Advs.	: *For the Financial Creditor & Res. in CA No.120/2019 (in item no.101) and Applicant in CA No.213/2018 (in item no.161)*
Sh. Sandeep Arora, Adv.	*: For the Petitioner in Item No.104*
Sh. R.P. Agarwal, Sr. Adv. assisted by Sh. Abhishek Tripathi, Adv.	*: For the Corporate Debtor & Applicant in CA No.120/2019 & IA No.406/2023 (in item no.101) and Petitioner in main CP in item no.161 & Res. in CA No.213/2018*

ORDER

Ld. Sr. Counsels with their assisting counsels are present for their respective parties.

-Sd- ***-Sd-***

ITEM NO.101 - CA NO.120/2019 & IA NO.406/2023 IN CP (IB) No.330/ALD/2018

1. It is stated by the Ld. Sr. Counsel representing the Financial Creditor that the settlement talks, which were going on *interse* between the parties for quite some time, however are not maturing, and in view of this Ld. Sr. Counsel representing the Financial Creditor seeks to pursue the present petition on merits.

2. Let the matter be adjourned for further hearing on 19th March, 2024 at 2.30 pm.

3. The other connected matters are also adjourned for the same date and the photocopy of this order be placed on record in the other connected matters.

-Sd-
(Ashish Verma)
Member (Technical)

-Sd-
(Praveen Gupta)
Member (Judicial)

23rd February, 2024

Kavya Prakash Srivastava
(Stenographer)